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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:17-cv-01341-CMA-STV

Mackey v. Woodson et al
Assigned to: Senior Judge Christine M. Arguello
Referred to: Magistrate Judge Scott T. Varholak
Demand: \$150,000
Case in other court: USCA, 20-01322
Cause: 42:1983 Prisoner Civil Rights

Date Filed: 06/02/2017
Date Terminated: 09/19/2019
Jury Demand: Both
Nature of Suit: 550 Prisoner - Civil Rights
(U.S. not a defendant)
Jurisdiction: Federal Question

Plaintiff**Waldo Mackey**

represented by **Kevin D. Homiak**
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TERMINATED: 04/29/2020

V.

Defendant

Leonard E. Woodson, III
TERMINATED: 06/21/2017

Defendant

Dana Krakow

TERMINATED: 06/21/2017

Defendant

Rick Raemish

TERMINATED: 06/21/2017

Defendant

Mary Hackler

TERMINATED: 06/21/2017

Defendant

Cherly Gillis

TERMINATED: 06/21/2017

Defendant

Bridgette Watson

represented by **Andrew David Ringel**
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TERMINATED: 10/05/2018

Defendant**Susan Prieto**

represented by **Andrew David Ringel**
 (See above for address)
ATTORNEY TO BE NOTICED

Edmund Martin Kennedy
 (See above for address)
ATTORNEY TO BE NOTICED

Jennifer Fawn Kemp
 (See above for address)
TERMINATED: 07/17/2018

Kathryn Anne Teresa Starnella
 (See above for address)
TERMINATED: 10/05/2018

Interested Party**Attn: James Moore and Nichole Chioffe**

represented by **Attn: James Moore and Nichole Chioffe**
 Fremont Correctional Facility (FCF)
 P.O. Box 999
 Canon City, CO 81215-0999
 PRO SE

Date Filed	#	Docket Text
06/02/2017	<u>1</u>	Prisoner COMPLAINT against Cherly Gillis, Mary Hackler, Dana Krakow, Rick Raemish, Bridgette Watson, Leonard E. Woodson, III, filed by Waldo Mackey. (Attachments: # <u>1</u> Affidavit, # <u>2</u> Exhibit)(amenz,) Modified to attach # <u>3</u> Envelope and correct text on 6/2/2017 (amenz,). (Entered: 06/02/2017)
06/02/2017	<u>2</u>	MOTION for Appointment of Counsel by Plaintiff Waldo Mackey. (amenz,) (Entered: 06/02/2017)
06/02/2017	3	Case assigned to Magistrate Judge Gordon P. Gallagher. Text Only Entry (amenz,) (Entered: 06/02/2017)
06/06/2017	<u>4</u>	ORDER DIRECTING PLAINTIFF TO CURE DEFICIENCIES by Magistrate Judge Gordon P. Gallagher on 6/6/17. (dkals,) (Entered: 06/06/2017)
06/16/2017	<u>5</u>	Filing fee: \$ 400, receipt number 80299 (dkals,) (Entered: 06/16/2017)
06/21/2017	<u>6</u>	ORDER to Dismiss in Part and Draw Case. Case randomly reassigned to Magistrate Judge Scott T. Varholak for all further proceedings. Magistrate Judge Gordon P. Gallagher no longer assigned to case, Dana Krakow, Rick Raemish, Leonard E. Woodson, III, Cherly Gillis and Mary Hackler terminated. <u>2</u> MOTION to Appoint Pro Bono Counsel is DENIED without prejudice by Judge Lewis T. Babcock on 06/21/2017. (angar,) (Entered: 06/21/2017)
06/21/2017	<u>7</u>	Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (angar,) (Entered: 06/21/2017)
06/22/2017	<u>8</u>	ORDER setting Scheduling Conference for 8/30/2017 09:15 AM in Courtroom C203 before Magistrate Judge Scott T. Varholak. Consent Form due by 8/16/2017. On or before

		8/23/2017, the parties shall file a joint proposed scheduling order by Magistrate Judge Scott T. Varholak on 6/22/2017. (jgonz,) (Entered: 06/22/2017)
06/22/2017	9	CERTIFICATE of Service by Clerk of Court re 6 ORDER to Dismiss in Part and Draw Case, 1 Prisoner Complaint for Service of Process (sphil,) (Entered: 06/22/2017)
06/23/2017	10	WAIVER OF SERVICE Returned Executed Susan Prieto waiver sent on 6/22/2017, answer due 8/21/2017; Bridgette Watson waiver sent on 6/22/2017, answer due 8/21/2017. (jgonz,) (Entered: 06/23/2017)
06/26/2017	11	MOTION for Summons to be Stamped with Court's Seal by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope)(jgonz,) (Entered: 06/27/2017)
06/26/2017	12	NOTICE to Attorney General that the Complaint and Filing Fee is Filed and Paid by Plaintiff Waldo Mackey (Attachments: # 1 Envelope)(jgonz,) (Entered: 06/27/2017)
06/28/2017	13	ORDER finding as moot 11 Motion for Order. Per the Order to Dismiss in Part and to Draw Case 6 , all of the defendants were dismissed with the exception of Bridgette Watson and Susan Prieto. The remaining Defendants have waived service. 10 The Clerk of the Court is instructed to a mail a copy of this order to Plaintiff. By Magistrate Judge Scott T. Varholak on 6/28/2017. Text Only Entry (stvlc2,) (Entered: 06/28/2017)
07/03/2017	14	MOTION for Notice and Clarification, by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope)(nmarb,) (Entered: 07/03/2017)
07/05/2017	15	ORDER finding as moot 14 Motion for Order. The docket correctly reflects that Bridgette Watson and not Bridgette Wilson is a named defendant in this case. The Clerk of the Court is instructed to mail a copy of this order to Plaintiff. By Magistrate Judge Scott T. Varholak on 7/5/2017. Text Only Entry (stvlc2,) (Entered: 07/05/2017)
07/21/2017	16	Request for Local Rules of District Court by Plaintiff Waldo Mackey. The Clerk has mailed out a copy the Local Rules to Plaintiff (Attachments: # 1 Envelope)(jgonz,) (Entered: 07/25/2017)
08/03/2017	17	DECLARATION of Rodolfo Rivera. (jgonz,) (Entered: 08/03/2017)
08/03/2017	18	DECLARATION of Waldo Mackey by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/03/2017)
08/03/2017	19	DECLARATION of Rodney Fogland. (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/03/2017)
08/03/2017	20	DECLARATION of Waldo Mackey by Plaintiff Waldo Mackey. (jgonz,) (Entered: 08/03/2017)
08/03/2017	21	DECLARATION of Nathan T. Cook. (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/03/2017)
08/03/2017	22	DECLARATION of Allen Williams. (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/03/2017)
08/04/2017	23	DECLARATION of Rodolfo Rivera, Waldo Mackey, Rodney Fogland, Waldo Mackey, Nathan T. Cook, Allen Williams by Plaintiff Waldo Mackey. (jgonz,) (Entered: 08/04/2017)
08/15/2017	24	CONSENT to Jurisdiction of Magistrate Judge by Plaintiff Waldo Mackey All parties do not consent.. (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/15/2017)
08/15/2017	25	NOTICE re 24 Consent to Jurisdiction of Magistrate Judge by Plaintiff Waldo Mackey (Attachments: # 1 Envelope)(jgonz,) (Entered: 08/15/2017)

08/16/2017	26	CASE REASSIGNED pursuant to 24 Consent/Non-Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Christine M. Arguello. All future pleadings should be designated as 17-cv-01341-CMA. (Text Only Entry) (jgonz,) (Entered: 08/16/2017)
08/16/2017	27	ORDER REFERRING CASE to Magistrate Judge Scott T. Varholak. Magistrate Judge Varholak is designated to conduct ALLMTN proceedings pursuant to 28 U.S.C. § 636(b) (1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b). The parties should expect to be given a firm trial setting that is 90 to 120 days from the date of the final pretrial conference, and should be available for trial accordingly. FURTHER, Court-sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, the Court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. SO ORDERED by Judge Christine M. Arguello on 8/16/2017. Text Only Entry (cmasec) (Entered: 08/16/2017)
08/17/2017	28	NOTICE of Entry of Appearance by Jennifer Fawn Kemp on behalf of Susan Prieto, Bridgette Watson Attorney Jennifer Fawn Kemp added to party Susan Prieto (pty:dft), Attorney Jennifer Fawn Kemp added to party Bridgette Watson(pty:dft) (Kemp, Jennifer) (Entered: 08/17/2017)
08/17/2017	29	CONSENT to Jurisdiction of Magistrate Judge by Defendants Susan Prieto, Bridgette Watson All parties do not consent.. (Kemp, Jennifer) (Entered: 08/17/2017)
08/21/2017	30	MOTION to Dismiss by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit AR 850-06)(Kemp, Jennifer) (Entered: 08/21/2017)
08/21/2017	31	MOTION to Stay <i>Discovery and Vacate Scheduling Conference</i> by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 08/21/2017)
08/22/2017	32	MEMORANDUM regarding 30 MOTION to Dismiss filed by Susan Prieto, Bridgette Watson, 31 MOTION to Stay <i>Discovery and Vacate Scheduling Conference</i> filed by Susan Prieto, Bridgette Watson. Motions referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 8/22/2017. Text Only Entry (cmasec) (Entered: 08/22/2017)
08/25/2017	33	Proposed Scheduling Order by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 08/25/2017)
08/25/2017	34	Second MOTION for Appointment Counsel by Plaintiff Waldo Mackey. (athom,) (Entered: 08/25/2017)
08/25/2017	35	DECLARATION of Waldo Mackey regarding Second MOTION for Appointment of Counsel 34 by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 08/25/2017)
08/28/2017	36	MEMORANDUM regarding 34 MOTION to Appoint Counsel filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 8/28/2017. Text Only Entry (cmasec) (Entered: 08/28/2017)
08/28/2017	37	Objection to 31 MOTION to Stay <i>Discovery and Vacate Scheduling Conference</i> filed by Plaintiff Waldo Mackey. (Attachments: # 1 Copy of Objection, # 2 Envelope) (athom,) (Entered: 08/28/2017)
08/30/2017	38	MINUTE ENTRY for Scheduling Conference held before Magistrate Judge Scott T. Varholak on 8/30/2017. ORDERED: 31 Defendants' Motion to Stay Discovery and Vacate Scheduling Conference is GRANTED. The deadline for the Plaintiff to respond to Defendants Motion to Dismiss [Doc. No. 30] is extended to September 18, 2017. 34

		Plaintiff's Second Motion for Appointment of Counsel is DENIED without prejudice with leave to re-file if the Motion to Dismiss [Doc. No. 30] is denied. Status Conference set for 11/28/2017 10:00 AM in Courtroom C203 before Magistrate Judge Scott T. Varholak. Hearing concluded. FTR: STV - C203. (morti,) (Entered: 08/30/2017)
09/18/2017	39	Objection to 30 MOTION to Dismiss filed by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibits) (athom,) (Entered: 09/19/2017)
09/18/2017	40	AFFIDAVIT re 39 Objection to Motion by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 09/19/2017)
10/03/2017	41	REPLY to Response to 30 MOTION to Dismiss filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit AR 850-06, Effective Date April 1, 2014, # 2 Exhibit Unpublished Case)(Kemp, Jennifer) (Entered: 10/03/2017)
10/12/2017	42	SURREPLY re 30 MOTION to Dismiss filed by Plaintiff Waldo Mackey. (cthom,) (Entered: 10/12/2017)
10/25/2017	43	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 30 MOTION to Dismiss filed by Susan Prieto, Bridgette Watson. The Court respectfully RECOMMEND that the Motion be GRANTED IN PART and DENIED IN PART, by Magistrate Judge Scott T. Varholak on 10/25/2017. (jgonz,) (Entered: 10/25/2017)
11/03/2017	44	MOTION for Appointment of Counsel by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 11/03/2017)
11/06/2017	45	MEMORANDUM regarding 44 MOTION to Appoint Counsel filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 11/6/2017. Text Only Entry (cmasec) (Entered: 11/06/2017)
11/06/2017	46	OBJECTION to the Dismissal of Claim 5 and the Defendant Susan Prieto re 43 Report and Recommendations filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 11/06/2017)
11/08/2017	47	OBJECTION to 43 Report and Recommendations filed by Defendant Bridgette Watson. (Kemp, Jennifer) (Entered: 11/08/2017)
11/20/2017	48	RESPONSE to Objection to 43 RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 30 MOTION to Dismiss filed by Susan Prieto, Bridgette Watson filed by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 11/20/2017)
11/22/2017	49	RESPONSE to Defendant's 47 Objection to 43 RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 30 MOTION to Dismiss filed by Susan Prieto, Bridgette Watson filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 11/22/2017)
11/28/2017	50	MINUTE ENTRY for Status Conference held before Magistrate Judge Scott T. Varholak on 11/28/2017. 44 Plaintiff's Motion to Appoint Counsel is GRANTED. Status Conference set for 2/5/2018 10:30 AM in Courtroom C203 before Magistrate Judge Scott T. Varholak. FTR: STV - C203. (morti,) (Entered: 11/28/2017)
12/05/2017	51	ORDER Adopting in Part and Rejecting in Part the 43 October 25, 2017 Recommendation of United States Magistrate Judge. Defendants' Objection (Doc. # 47) is overruled. Defendants' Motion to Dismiss (Doc. # 30) is DENIED. By Judge Christine M. Arguello on 12/05/2017. (athom,) (Entered: 12/05/2017)
12/26/2017	52	ANSWER to 1 Complaint, by Susan Prieto, Bridgette Watson.(Kemp, Jennifer) (Entered: 12/26/2017)

01/10/2018	53	RESPONSE to 52 Answer to Complaint by Plaintiff Waldo Mackey. (dkals,) (Entered: 01/10/2018)
01/31/2018	54	MOTION for Supplemental Pleading Pursuant to Rule 15(d) re 1 Complaint, by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/01/2018)
02/01/2018	55	MEMORANDUM regarding 54 MOTION to Supplement 1 Complaint, filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 2/1/2018. Text Only Entry (cmasec) (Entered: 02/01/2018)
02/05/2018	56	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Scott T. Varholak: Status Conference held on 2/5/2018. Defendants shall file a response to 54 Motion for Supplemental Pleading by 2/14/2018. Plaintiff may file a reply by 2/28/2018. Proposed scheduling order shall be submitted to the Court by 3/12/2018. Scheduling Conference set for 3/19/2018 11:00 AM in Courtroom C203 before Magistrate Judge Scott T. Varholak. Plaintiff shall contact the court at 303.335.2363 at the scheduled date and time to participate in the hearing. FTR: Courtroom C-203. (amont,) (Entered: 02/05/2018)
02/05/2018	57	CERTIFICATE of Mailing: 56 Status Conference mailed to Waldo Mackey #82262 Fremont Correctional Facility (FCF) P.O. Box 999 Canon City, CO 81215-0999 (amont,) (Entered: 02/05/2018)
02/14/2018	58	RESPONSE to 54 MOTION to Supplement 1 Complaint, filed by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 02/14/2018)
02/21/2018	59	MOTION for Summary Judgment by Plaintiff Waldo Mackey. (Attachments: # 1 Declaration in Support of Motion for Summary Judgment) (athom,) (Entered: 02/21/2018)
02/21/2018	60	BRIEF in Support of 59 MOTION for Summary Judgment filed by Plaintiff Waldo Mackey. (athom,) (Entered: 02/21/2018)
02/21/2018	61	STATEMENT of Undisputed Facts re 59 MOTION for Summary Judgment by Plaintiff Waldo Mackey. (athom,) (Entered: 02/21/2018)
02/21/2018	62	Proposed Scheduling Order by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/21/2018)
02/22/2018	63	MEMORANDUM regarding 59 MOTION for Summary Judgment filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 2/22/2018. Text Only Entry (cmasec) (Entered: 02/22/2018)
02/26/2018	64	REPLY to Response to 54 MOTION to Supplement 1 Complaint, filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/26/2018)
02/28/2018	65	MOTION for Correction re 61 Statement of Undisputed Facts re [59] MOTION for Summary Judgment by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Document Page Substitution, # 2 Envelope) (athom,) (Entered: 03/01/2018)
03/02/2018	66	ORDER granting 65 Motion to Correct. Doc. 65-1 is accepted as filed. Doc. 65-1 shall substitute page 7 of Doc. 61. SO ORDERED by Judge Christine M. Arguello on 3/2/2018. Text Only Entry (cmasec) (Entered: 03/02/2018)
03/07/2018	67	REPLY to Response 58 to the 54 Motion re Mitigation of Damages by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) Modified on 3/19/2018 (morti,). (Entered: 03/07/2018)
03/07/2018	68	MEMORANDUM regarding 67 MOTION for Leave to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on

		3/7/2018. Text Only Entry (cmasec) (Entered: 03/07/2018)
03/12/2018	69	Proposed Scheduling Order by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 03/12/2018)
03/13/2018	70	MOTION for Extension of Time to File Response/Reply as to 59 MOTION for Summary Judgment by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 03/13/2018)
03/13/2018	71	MEMORANDUM regarding 70 MOTION for Extension of Time to File Response/Reply as to 59 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 3/13/2018. Text Only Entry (cmasec) (Entered: 03/13/2018)
03/13/2018	72	ORDER granting 70 Motion for Extension of Time to File Response/Reply. Defendants shall respond to Plaintiff's Motion for Summary Judgment 59 on or before 4/4/2018. SO ORDERED, by Magistrate Judge Scott T. Varholak on 3/13/2018. Text Only Entry (stvlc2,) (Entered: 03/13/2018)
03/19/2018	73	MINUTE ENTRY for Scheduling Conference held before Magistrate Judge Scott T. Varholak held on 3/19/2018; 54 Motion for Supplemental Pleading Pursuant to Rule 15(d) is GRANTED. Discovery due by 9/19/2018. Dispositive Motions due by 10/19/2018. Final Pretrial Conference set for 1/8/2019 10:30 AM in Courtroom C203 before Magistrate Judge Scott T. Varholak. FTR: STV - C203. (morti,) (Entered: 03/19/2018)
03/19/2018	74	SCHEDULING ORDER: by Magistrate Judge Scott T. Varholak on 3/19/2018. (morti,) (Entered: 03/19/2018)
03/29/2018	75	MOTION to Strike 60 Brief in Support of Motion, 61 Statement, 59 MOTION for Summary Judgment by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 03/29/2018)
04/01/2018	76	MEMORANDUM regarding 75 MOTION to Strike 60 Brief in Support of Motion, 61 Statement, 59 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 4/1/2018. Text Only Entry (cmasec) (Entered: 04/01/2018)
04/02/2018	77	ORDER denying 75 Motion to Strike. Defendants seek to strike Plaintiff's Motion for Summary Judgment 59 , Brief in Support 60 , and Statement of Undisputed Facts 61 , for failure to comply with Judge Arguello's Civil Practice Standards. Although Plaintiff's Motion and the supporting documents do not perfectly comply with Judge Arguello's Practice Standards, Plaintiff's filings clearly constitute a good-faith effort with this Court's Local Rules, which in part require a statement of undisputed facts to accompany a Motion for Summary Judgment. See D.C.COLO.LCivR 56.1. Furthermore, to the extent Plaintiff has not complied with Judge Arugello's Practice Standards and this Court's Local Rules with perfect precision, the Court is mindful not only of the fact that Plaintiff is proceeding pro se, but also that he is litigating his case in a prison setting, with presumably significantly limited resources. For these reasons, any deviation by Plaintiff from the Court's Practice Standards and Local Rules does not justify striking Plaintiff's Motion and the accompanying filings. Moreover, because Plaintiff's Motion has been pending since 2/21/2018, and Defendants have already been granted an extension of time to respond to the Motion 72 , the Court also finds that an additional 21-day extension of time to respond, which Defendants seek in the alternative, is unwarranted. Defendants shall file a response to the Motion for Summary Judgment 59 on or before 4/16/2018. The Clerk of Court is directed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 4/2/2018. Text Only Entry (stvlc2,) (Entered: 04/02/2018)

04/02/2018	78	Request that the Court Appoint an Attorney for a Deposition of Defendants by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/03/2018)
04/03/2018	79	MEMORANDUM regarding 78 MOTION to Appoint Counsel filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 4/3/2018. Text Only Entry (cmasec) (Entered: 04/03/2018)
04/03/2018	80	CERTIFICATE of Service by mail by Clerk of Court re 77 Order on Motion to Strike, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 04/03/2018)
04/03/2018	81	ORDER denying 78 Motion to Appoint Counsel. The Motion is denied as moot because, as Plaintiff recognizes in the Motion, the Court has already granted a previous Motion by Plaintiff for Appointment of Counsel. 50 As the Court previously explained, there is no guarantee that counsel will be appointed in this case and Plaintiff remains responsible for all deadlines until counsel is appointed. The Clerk of Court is directed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 4/3/2018. Text Only Entry (stvlc2,) (Entered: 04/03/2018)
04/04/2018	82	CERTIFICATE of Service by Mail by Clerk of Court re 81 Order, to Waldo Mackey #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 04/04/2018)
04/09/2018	83	Request for Admissions by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/10/2018)
04/09/2018	84	Request for Production of Documents by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/10/2018)
04/11/2018	85	Objection to 75 MOTION to Strike 59 MOTION for Summary Judgment filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/11/2018)
04/16/2018	86	RESPONSE to 59 MOTION for Summary Judgment filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Affidavit Affidavit of Bridgette Watson, # 2 Exhibit Attachment to Ex A - Report, # 3 Exhibit AR 300-06, # 4 Exhibit AR 850-06, # 5 Affidavit Affidavit of Jennifer Kemp, # 6 Exhibit Greivances, # 7 Affidavit Affidavit of Susan Prieto, # 8 Exhibit Attachment to Ex F - COPD Documents, # 9 Exhibit Attachment 2 to Ex F - Conventionally Submitted Material - Audio of COPD Hearing, # 10 Exhibit Conventionally Submitted Material - Audio Recording of Parole Board Hearing, # 11 Exhibit Parole Board Notice of Action)(Kemp, Jennifer) (Entered: 04/16/2018)
04/19/2018	87	Conventionally Submitted Material : 1 CD: Exhibit F, Attachment 2 and Exhibit G to Response to Motion 86 by Defendants Susan Prieto, Bridgette Watson. Text Only Entry (athom,) Location of stored items, oversized area A-3-1 (jsalz,). (Entered: 04/20/2018)
05/07/2018	88	MOTION for Extension of Time to <i>Respond to Plaintiff's Requests for Production and Requests for Admission</i> by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 05/07/2018)
05/07/2018	89	MEMORANDUM regarding 88 MOTION for Extension of Time to <i>Respond to Plaintiff's Requests for Production and Requests for Admission</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 5/7/2018. Text Only Entry (cmasec) (Entered: 05/07/2018)
05/07/2018	90	ORDER granting 88 Motion for Extension of Time to Respond to Plaintiffs Request for Production of Documents and Request for Admissions. The deadline for Defendants to respond to 83 Requests for Admission and 84 Requests for Production of Documents is

		extended until 5/31/2018. The Clerk of Court is directed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 5/07/2018. Text Only Entry (stvlc1,) (Entered: 05/07/2018)
05/07/2018	92	REPLY to Response to 59 MOTION for Summary Judgment filed by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibits) (athom,) (Entered: 05/09/2018)
05/07/2018	93	AFFIDAVIT to Defendants 30 Motion to Dismiss by Plaintiff Waldo Mackey. (athom,) (Entered: 05/09/2018)
05/08/2018	91	CERTIFICATE of Service by Mail by Clerk of Court re 90 Order on Motion for Extension of Time to File, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 05/08/2018)
05/18/2018	94	MOTION for Correction re 92 Reply to Response to Motion by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 05/19/2018)
05/21/2018	95	MEMORANDUM regarding 94 MOTION to Amend/Correct/Modify 92 Reply to Response to Motion filed by Waldo Mackey. Motions referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 5/21/2018. Text Only Entry (cmasec) (Entered: 05/21/2018)
05/21/2018	96	ORDER granting 94 Motion to Amend/Correct/Modify. In the Motion, Plaintiff points to two numerical and typographical errors in his reply 92 in support of his Motion for Summary Judgment 59 , that do not impact the substance of the reply. The Court accepts Plaintiff's corrections and will consider Plaintiff's reply 92 accordingly. Plaintiff need not file a revised reply. The Clerk of Court shall mail a copy of this order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 5/21/2018. Text Only Entry (stvlc2,) (Entered: 05/21/2018)
05/21/2018	97	CERTIFICATE of Service by Mail by Clerk of Court re 96 Order on Motion to Amend/Correct/Modify, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 05/21/2018)
06/18/2018	98	Affidavit and MOTION to Compel by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2) (athom,) (Entered: 06/19/2018)
06/18/2018	99	BRIEF in Support of 98 MOTION to Compel filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 06/19/2018)
06/19/2018	100	MEMORANDUM regarding 98 MOTION to Compel filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 6/19/2018. Text Only Entry (cmasec) (Entered: 06/19/2018)
06/20/2018	101	MINUTE ORDER re: 98 MOTION to Compel. Discovery Hearing on the Motion is set for 8/3/2018 at 3:30 PM in Courtroom C203 before Magistrate Judge Scott T. Varholak. The Clerk of Court is instructed to mail a copy of this order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 6/20/2018. Text Only Entry (stvlc2,) (Entered: 06/20/2018)
06/20/2018	102	CERTIFICATE of Service by Mail by Clerk of Court of 101 Minute Order, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (nmarb,) (Entered: 06/20/2018)
06/20/2018	103	Request for Admissions by Plaintiff Waldo Mackey. (athom,) (Entered: 06/22/2018)

06/20/2018	104	Request for Production of Documents by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 06/22/2018)
06/28/2018	105	SUPPLEMENT to 98 MOTION to Compel by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 06/28/2018)
06/29/2018	106	RESPONSE to 98 MOTION to Compel filed by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 06/29/2018)
07/16/2018	112	Additional Information for Motion to Compel Hearing on August 3, 2018 re 101 Minute Order, by Plaintiff Waldo Mackey (Attachments: # 1 Envelope) (athom,) (Entered: 07/17/2018)
07/17/2018	107	NOTICE of Entry of Appearance by Kathryn Anne Teresa Starnella on behalf of Susan Prieto, Bridgette WatsonAttorney Kathryn Anne Teresa Starnella added to party Susan Prieto (pty:dft), Attorney Kathryn Anne Teresa Starnella added to party Bridgette Watson(pty:dft) (Starnella, Kathryn) (Entered: 07/17/2018)
07/17/2018	108	MOTION for Extension of Time to <i>Respond to Second Discovery</i> by Defendants Susan Prieto, Bridgette Watson. (Starnella, Kathryn) (Entered: 07/17/2018)
07/17/2018	109	MOTION to Withdraw as Attorney by Defendants Susan Prieto, Bridgette Watson. (Kemp, Jennifer) (Entered: 07/17/2018)
07/17/2018	110	ORDER granting 109 Motion to Withdraw as Attorney. Attorney Jennifer Kemp is permitted to withdraw as counsel for Defendants. The Court notes that Defendants continue to be represented by Kathryn Starnella. FURTHER ORDERED that the Clerk of the Court is DIRECTED to delete Ms. Kemp's email address from future ECF filings and electronic notifications in this case. SO ORDERED by Judge Christine M. Arguello on 7/17/2018. Text Only Entry (cmasec) (Entered: 07/17/2018)
07/17/2018	111	MEMORANDUM regarding 108 MOTION for Extension of Time to <i>Respond to Second Discovery</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 7/17/2018. Text Only Entry (cmasec) (Entered: 07/17/2018)
07/17/2018	113	ORDER granting 108 Motion for Extension of Time to File. Defendants shall respond to Plaintiff's Second Discovery Requests on or before 8/9/2018. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 7/17/2018. Text Only Entry (stvlc2,) (Entered: 07/17/2018)
07/17/2018	114	CERTIFICATE of Service by Mail by Clerk of Court re 113 Order on Motion for Extension of Time to File, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 07/17/2018)
08/02/2018	115	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 59 MOTION for Summary Judgment filed by Waldo Mackey. The Court respectfully RECOMMENDS that the Motion be DENIED, by Magistrate Judge Scott T. Varholak on 8/2/2018. (jgonz,) (Entered: 08/02/2018)
08/03/2018	116	MINUTE ENTRY for Discovery Hearing held before Magistrate Judge Scott T. Varholak held on 8/3/2018. 98 Plaintiffs Affidavit in Support of Motion to Compel is GRANTED IN PART. Discovery Hearing set for 8/30/2018 11:30 AM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. Parties may participate by telephone by contacting the court at (303) 335-2365 at the scheduled date and time. FTR: STV - C203. (morti,) (Entered: 08/06/2018)

08/20/2018	117	OBJECTIONS to 115 Report and Recommendations filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 08/20/2018)
08/23/2018	118	OBJECTIONS to the Denial of Discovery Request at Hearing 116 on August 3, 2018 by Plaintiff Waldo Mackey. (agarc,) (Entered: 08/24/2018)
08/27/2018	119	Additional Information to be Added to 117 Objection to Report and Recommendations by Plaintiff Waldo Mackey. (dkals,) (Entered: 08/27/2018)
08/27/2018	120	MOTION for Protection Order and Order to Compel on Request for Admissions by Plaintiff Waldo Mackey. (dkals,) (Entered: 08/27/2018)
08/28/2018	121	MEMORANDUM regarding 120 MOTION for Protective Order filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 8/28/2018. Text Only Entry (cmasec) (Entered: 08/28/2018)
08/28/2018	122	MINUTE ORDER re: 120 MOTION for Protective Order filed by Waldo Mackey. The parties shall be prepared to address the Motion, in addition to the discovery disputes remaining after the hearing before this Court on 8/3/2018 116 , at the Discovery Hearing set for 8/30/2018 11:30 AM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. Parties may participate by telephone by contacting the court at (303) 335-2365 at the scheduled date and time. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 8/28/2018. Text Only Entry (stvlc2,) (Entered: 08/28/2018)
08/29/2018	123	CERTIFICATE of Service by Mail by Clerk of Court re 122 Minute Order, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 08/29/2018)
08/30/2018	124	MINUTE ENTRY for Discovery Hearing held before Magistrate Judge Scott T. Varholak on 8/30/2018. 120 Plaintiffs Motion for Protection Order an Order to Compel on Request for Admissions and Second Request for Production of Documents is DENIED. Discovery deadline extended to 10/19/2018. Dispositive Motions deadline extended to 11/16/2018. Discovery Hearing set for 9/11/2018 11:00 AM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. FTR: STV - A402. (morti,) (Entered: 08/30/2018)
08/30/2018	125	CERTIFICATE of Service by Mail by Clerk of Court re 124 and [86-5] to Waldo Mackey, #82262, Fremont Correctional Facility, P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (morti,) (Entered: 08/30/2018)
08/31/2018	126	Ex Parte MOTION to Secure Subpoena Duces Tecum Forms from the Clerk of the Court by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 08/31/2018)
09/04/2018	127	MEMORANDUM regarding 126 MOTION for Order to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 9/4/2018. Text Only Entry (cmasec) (Entered: 09/04/2018)
09/04/2018	128	ORDER granting 126 Motion for Order. The Clerk of Court is instructed to send Plaintiff ten subpoena duces tecum forms. Plaintiff is advised that it is his responsibility to fill out these forms and return them to the Clerk's Office. The forms will not be effective until they are returned to the Clerk's office for signature. Plaintiff is further advised that in the future, such forms should be available for his use at the facility law library. SO ORDERED, by Magistrate Judge Scott T. Varholak on 9/4/2018. Text Only Entry (stvlc2,) (Entered: 09/04/2018)
09/04/2018	129	CERTIFICATE of Service by Mail by Clerk of Court re 128 Order on Motion for Order and ten subpoena duces tecum forms, to Waldo Mackey Waldo Mackey,#82262,Fremont

		Correctional Facility (FCF),P.O. Box 999,Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 09/04/2018)
09/06/2018	130	Further OBJECTIONS to 115 Report and Recommendations and Objections to the Denial of the Protection Order filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 09/07/2018)
09/06/2018	131	First Set of Interrogatories by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 09/07/2018)
09/11/2018	132	MINUTE ENTRY forDiscovery Hearing held before Magistrate Judge Scott T. Varholak on 9/11/2018. A further Discovery Hearing set for 9/21/2018 01:00 PM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. FTR: STV - A402. (morti,) (Entered: 09/11/2018)
09/13/2018	133	ORDER Affirming the 115 August 2, 2018 Recommendation of United States Magistrate Judge and Denying Plaintiff's 59 Motion for Summary Judgment. Plaintiff's Objection (Doc. # 117) is OVERRULED. By Judge Christine M. Arguello on 09/13/2018. (athom,) (Entered: 09/13/2018)
09/13/2018	134	NOTICE of Subpoena by Plaintiff Waldo Mackey (Attachments: # 1 Envelope) (athom,) (Entered: 09/17/2018)
09/21/2018	135	MINUTE ENTRY for Discovery Hearing held before Magistrate Judge Scott T. Varholak on 9/21/2018. FTR: STV - 402. (morti,) (Entered: 09/21/2018)
09/21/2018	136	SUBPOENAS (3) received by mail on 09/21/2018 from Plaintiff as to Fremont Combined Court Clerk, Deborah Sather Stringari issued by Clerk and mailed back to Plaintiff on 09/21/2018. Text Only Entry (athom,) (Entered: 09/21/2018)
10/04/2018	137	NOTICE of Entry of Appearance by Andrew David Ringel on behalf of Susan Prieto, Bridgette WatsonAttorney Andrew David Ringel added to party Susan Prieto (pty:dft), Attorney Andrew David Ringel added to party Bridgette Watson(pty:dft) (Ringel, Andrew) (Entered: 10/04/2018)
10/04/2018	138	MOTION for Extension of Time to by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 10/04/2018)
10/04/2018	139	MOTION to Withdraw <i>Kathryn Starnella as Counsel of Record</i> by Defendants Susan Prieto, Bridgette Watson. (Gellar, Nicole) (Entered: 10/04/2018)
10/05/2018	140	ORDER granting 139 Motion to Withdraw. Attorney Kathryn Starnella is permitted to withdraw as counsel for Defendants. The Court notes that Defendants continue to be represented by Andrew Ringel. FURTHER ORDERED that the Clerk of the Court is DIRECTED to delete Ms. Starnella's email address from future ECF filings and electronic notifications in this case. SO ORDERED by Judge Christine M. Arguello on 10/5/2018. (cmasec) (Entered: 10/05/2018)
10/05/2018	141	MEMORANDUM regarding 138 MOTION for Extension of Time to filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 10/5/2018. Text Only Entry (cmasec) (Entered: 10/05/2018)
10/05/2018	142	ORDER granting 138 Motion for Extension of Time to File. Defendants shall respond to Plaintiff's interrogatories on or before 10/23/2018. The Discovery cut-off deadline is extended to 11/30/2018. The deadline for Dispositive Motions is extended to 12/21/2018. The Final Pretrial Conference set for 1/8/2019 10:30 AM is VACATED and RESET for 2/1/2019 10:30 AM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by

		Magistrate Judge Scott T. Varholak on 10/5/2018. Text Only Entry (stvlc2,) (Entered: 10/05/2018)
10/09/2018	143	CERTIFICATE of Service by Mail by Clerk of Court re 142 Order on Motion for Extension of Time to File, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 10/09/2018)
10/18/2018	144	MOTION for Order to <i>Conduct Deposition of Incarcerated Inmate Plaintiff Pursuant to Fed.R.Civ.P.30(a)(2)(B)</i> by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Proposed Order (PDF Only))(Ringel, Andrew) (Entered: 10/18/2018)
10/18/2018	145	MEMORANDUM regarding 144 MOTION for Order to <i>Conduct Deposition of Incarcerated Inmate Plaintiff Pursuant to Fed.R.Civ.P.30(a)(2)(B)</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 10/18/2018. Text Only Entry (cmasec) (Entered: 10/18/2018)
10/18/2018	146	ORDER by Magistrate Judge Scott T. Varholak on 10/18/18 GRANTING 144 Defendant's Motion to Conduct Deposition of Incarcerated Inmate Plaintiff Pursuant to Fed.R.Civ.P.30(a)(2)(B). (nmarb,) (Entered: 10/18/2018)
10/22/2018	147	Memorandum of Law in Support for a Temporary Restraining Order by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Document Order) (athom,) (Entered: 10/23/2018)
10/22/2018	148	DECLARATION in Support of MOTION for Temporary Restraining Order 147 by Plaintiff Waldo Mackey. (athom,) (Entered: 10/23/2018)
10/22/2018	149	Defendants have Committed Intentional Fraud Which is Still Ongoing Pursuant to Fed.R.Civ.P. 9(b) by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit 36, # 2 Exhibit 37, # 3 Exhibit 38, # 4 Exhibit 39, # 5 Exhibit 40, # 6 Exhibit 41, # 7 Exhibit 42, # 8 Exhibit 43) (athom,) (Entered: 10/23/2018)
10/23/2018	150	MEMORANDUM regarding 149 MOTION for Sanctions filed by Waldo Mackey, 147 MOTION for Temporary Restraining Order filed by Waldo Mackey. Motions referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 10/23/2018. Text Only Entry (cmasec) (Entered: 10/23/2018)
10/31/2018	151	MOTION for Extension of Time to <i>Respond to Plaintiff's Second Set of Interrogatories</i> by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 10/31/2018)
10/31/2018	152	MEMORANDUM regarding 151 MOTION for Extension of Time to <i>Respond to Plaintiff's Second Set of Interrogatories</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 10/31/2018. Text Only Entry (cmasec) (Entered: 10/31/2018)
10/31/2018	153	ORDER granting 151 Motion for Extension of Time to File. The deadline for Defendants to respond to Plaintiff's Second Set of Interrogatories is extended to 11/13/2018. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 10/31/2018. Text Only Entry (stvlc2,) (Entered: 10/31/2018)
11/01/2018	154	CERTIFICATE of Service by Mail by Clerk of Court re 153 Order on Motion for Extension of Time, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 11/01/2018)
11/13/2018	155	MOTION for Extension of Time to File Response/Reply as to 149 MOTION for Sanctions, 147 MOTION for Temporary Restraining Order by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 11/13/2018)

11/13/2018	156	MEMORANDUM regarding 155 MOTION for Extension of Time to File Response/Reply as to 149 MOTION for Sanctions, 147 MOTION for Temporary Restraining Order filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 11/13/2018. Text Only Entry (cmasec) (Entered: 11/13/2018)
11/13/2018	157	ORDER granting 155 Motion for Extension of Time to File Response/Reply. Defendants shall respond to Plaintiff's 147 Motion for Temporary Restraining Order and 149 Defendants Have Committed Intentional Fraud Which is Still Ongoing Pursuant to Fed. R. Civ. P. 9(b) (the "Motion for Sanctions") on or before 11/19/2018. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 11/13/2018. Text Only Entry (stvlc2,) (Entered: 11/13/2018)
11/14/2018	158	CERTIFICATE of Service by Mail by Clerk of Court re 157 Order on Motion for Extension of Time to File Response/Reply, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 11/14/2018)
11/16/2018	159	RESPONSE to 147 MOTION for Temporary Restraining Order filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A-1 - Hicks v. Jones)(Ringel, Andrew) (Entered: 11/16/2018)
11/19/2018	160	RESPONSE to 149 MOTION for Sanctions filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 11/19/2018)
11/26/2018	161	MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A - Defs' Amended Answer, # 2 Exhibit B - Ayon v. Kent Denver Sch)(Ringel, Andrew) (Entered: 11/26/2018)
11/26/2018	162	MEMORANDUM regarding 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 11/26/2018. Text Only Entry (cmasec) (Entered: 11/26/2018)
11/28/2018	163	REPLY to Response to 147 MOTION for Temporary Restraining Order filed by Plaintiff Waldo Mackey. (athom,) (Entered: 11/28/2018)
11/28/2018	164	MINUTE ORDER re: 147 MOTION for Temporary Restraining Order, 149 MOTION for Sanctions, and 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> . A Motion Hearing, which will address all three Motions, is set for 1/8/2019 02:00 PM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. Plaintiff may participate in the hearing by the calling the Court at 303-335-2365 at the scheduled date and time. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 11/28/2018. Text Only Entry (stvlc2,) (Entered: 11/28/2018)
11/29/2018	165	CERTIFICATE of Service by Mail by Clerk of Court re 164 Minute Order, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 11/29/2018)
12/07/2018	166	REPLY to Defendants Response to 149 Ongoing Fraud Pursuant to Fed.R.Civ.P. 9(b) filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) Modified on 12/10/2018 to correct filing date (athom,). (Entered: 12/10/2018)
12/10/2018	167	MOTION for Status Clarification to File Reply re 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission</i>

		<i>Contained in Answer</i> by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 12/11/2018)
12/13/2018	168	MEMORANDUM regarding 167 MOTION to Clarify re 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 12/13/2018. Text Only Entry (cmasec) (Entered: 12/13/2018)
12/13/2018	169	ORDER granting 167 Motion to Clarify. To the extent Plaintiff seeks an extension of time to respond to Defendants' 161 MOTION to Amend/Correct/Modify or in the Alternative to Withdraw Inaccurate Admission Contained in Answer, the Motion is GRANTED. Plaintiff shall file a response to Defendants' 161 Motion on or before 12/24/2018. Defendants shall file a reply on or before 1/7/2019. Again, the Court will take up three Motions (147 MOTION for Temporary Restraining Order, 149 MOTION for Sanctions, and 161 MOTION to Amend/Correct/Modify) at the Motion Hearing set for 1/8/2019 02:00 PM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. Plaintiff may participate in the hearing by the calling the Court at 303-335-2365 at the scheduled date and time. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, By Magistrate Judge Scott T. Varholak on 12/13/2018. Text Only Entry (stvlc2,) (Entered: 12/13/2018)
12/14/2018	170	CERTIFICATE of Service by Mail by Clerk of Court re 169 Order on Motion to Clarify, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O.Box 999, Canon City, CO 81215-0999. Text Only Entry (nmarb,) (Entered: 12/14/2018)
12/17/2018	171	RESPONSE entitled Reply and Objection to 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> filed by Plaintiff Waldo Mackey. (Attachments: # 1 Affidavit, # 2 Envelope) (athom,) (Entered: 12/19/2018)
12/21/2018	172	MOTION for Summary Judgment by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A-1 - Deposition of Plaintiff Waldo Mackey)(Kennedy, Edmund) (Entered: 12/21/2018)
12/30/2018	173	MEMORANDUM regarding 172 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 12/30/2018. Text Only Entry (cmasec) (Entered: 12/30/2018)
01/02/2019	174	MOTION for Extension of Time to Answer 172 Motion for Summary Judgment by Plaintiff Waldo Mackey. (dkals,) (Entered: 01/02/2019)
01/02/2019	175	MEMORANDUM regarding 174 MOTION for Extension of Time to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 1/2/2019. Text Only Entry (cmasec) (Entered: 01/02/2019)
01/03/2019	176	ORDER granting 174 Motion for Extension of Time to File. Plaintiff shall file a response to 172 Motion for Summary Judgment on or before 1/21/2019. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 1/3/2019. Text Only Entry (stvlc2,) (Entered: 01/03/2019)
01/03/2019	177	CERTIFICATE of Service by Mail by Clerk of Court re 176 Order on Motion for Extension of Time to File, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 01/03/2019)
01/07/2019	178	REPLY to Response to 161 MOTION to Amend/Correct/Modify <i>or in the Alternative to Withdraw Inaccurate Admission Contained in Answer</i> filed by Defendants Susan Prieto,

		Bridgette Watson. (Kennedy, Edmund) (Entered: 01/07/2019)
01/08/2019	179	COURTROOM MINUTES for Motion Hearing held on 1/8/2019 before Magistrate Judge Scott T. Varholak. ORDERED: Defendants' Motion to Amend Answer or in the Alternative to Withdraw Inaccurate Admission Contained in Answer 161 is DENIED, for reasons stated on record. Plaintiff's submission that Defendants have Committed Intentional Fraud Which is Still Ongoing Pursuant to Fed.R.Civ.P. 9(b) 149 is DENIED, for reasons stated on record. Plaintiff's Memorandum of Law in Support of Motion for a Temporary Restraining Order 147 is TAKEN UNDER ADVISEMENT. The Court will issue a written recommendation. FTR: STV A402. (sgrim) (Entered: 01/08/2019)
01/14/2019	180	MOTION to File Affidavit by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Document Affidavit of Scott Helms, # 2 Envelope) (athom,) (Entered: 01/15/2019)
01/15/2019	181	MEMORANDUM regarding 180 MOTION for Leave to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 1/15/2019. Text Only Entry (cmasec) (Entered: 01/15/2019)
01/15/2019	182	ORDER granting 180 Motion for Leave. The Court accepts the Affidavit of Scott Helms [180-1] as filed. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 1/15/2019. Text Only Entry (stvlc2,) (Entered: 01/15/2019)
01/15/2019	183	CERTIFICATE of Service by Mail by Clerk of Court re 182 Order on Motion for Leave, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 01/15/2019)
01/15/2019	184	TRANSCRIPT of TRANSCRIPT OF PROCEEDINGS held on 01/08/2019 before Magistrate Judge Varholak. Pages: 1-33. Prepared by: AB Court Reporting & Video, Inc.. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (AB Court Reporting & Video, Inc.,) (Entered: 01/15/2019)
01/18/2019	185	MOTION for Extension of Time to <i>Object to Magistrate Judge's Denial of Defendants' Motion to Amend Answer to Complaint</i> by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Proposed Order (PDF Only))(Kennedy, Edmund) (Entered: 01/18/2019)
01/18/2019	186	Answer and Objection to 172 MOTION for Summary Judgment filed by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit 34, # 2 General Affidavit, # 3 Memorandum Opinion and Order, # 4 Attorneys and Law Firms, # 5 Attorneys and Law Firms, # 6 Envelope) (athom,) (Entered: 01/18/2019)
01/18/2019	187	Mitigation of Damages by Plaintiff Waldo Mackey. (athom,) (Entered: 01/18/2019)
01/22/2019	188	MEMORANDUM regarding 187 MOTION for Leave to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 1/22/2019. Text Only Entry (cmasec) (Entered: 01/22/2019)
01/22/2019	189	ORDER granting 185 Motion for Extension of Time. Defendants shall have up to and including 1/25/2019 within which to file their Objection to 179 Magistrate Judge's Order

		denying 161 Defendants' Motion to Amend Answer. SO ORDERED by Judge Christine M. Arguello on 1/22/2019. Text Only Entry (cmasec) (Entered: 01/22/2019)
01/22/2019	190	ORDER denying 187 Motion for Leave. The document, entitled "Mitigation of Damages" does not appear to seek any relief from the Court. To the extent Plaintiff is seeking to amend his complaint to specify the compensatory damages amount he seeks, Plaintiff must file a motion that "demonstrate[s] (1) good cause for seeking modification under Fed. R. Civ. P. 16(b)(4) and (2) satisfaction of the Rule 15(a) standard" for amending pleadings, because the deadline for amendment of pleadings established by the scheduling order has expired. <i>Birch v. Polaris Indus., Inc.</i> , 812 F.3d 1238, 1247 (10th Cir. 2015) (quoting <i>Gorsuch, Ltd., B.C. v. Wells Fargo Natl Bank Assn</i> , 771 F.3d 1230, 1240 (10th Cir. 2014)). Plaintiff has failed to do so here. To the extent the "Mitigation of Damages" document was intended to be part of Plaintiff's response to Defendants' Motion for Summary Judgment 186 , Plaintiff shall file notice with the Court of his intent for the Mitigation of Damages to be considered as part of that response, on or before 2/5/2019. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 1/22/2019. Text Only Entry (stvlc2,) (Entered: 01/22/2019)
01/22/2019	191	CERTIFICATE of Service by Mail by Clerk of Court re 190 Order, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 01/22/2019)
01/24/2019	197	Petition for Writ of Habeas Corpus ad testificandum by Plaintiff Waldo Mackey. (athom,) Modified on 1/28/2019 to correct text (athom,). (Entered: 01/28/2019)
01/24/2019	198	Petition for Writ of Habeas Corpus ad testificandum as to Scott Helms by Plaintiff Waldo Mackey. (athom,) (Entered: 01/28/2019)
01/24/2019	199	Petition for Writ of Habeas Corpus ad testificandum as to Nathan T. Cook by Plaintiff Waldo Mackey. (athom,) (Entered: 01/28/2019)
01/24/2019	200	Petition for Writ of Habeas Corpus ad testificandum as to Justin Tyme by Plaintiff Waldo Mackey. (athom,) (Entered: 01/28/2019)
01/24/2019	201	MOTION for Appointment of Advisory Counsel by Plaintiff Waldo Mackey. (athom,) (Entered: 01/28/2019)
01/24/2019	202	MOTION for the Marshal to Serve Correctional Officers in the Facility by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 01/28/2019)
01/25/2019	192	MOTION to Vacate <i>and Reschedule Final Pretrial Conference</i> by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A - Letter to Pla Encl Draft FPO) (Ringel, Andrew) (Entered: 01/25/2019)
01/25/2019	193	MEMORANDUM regarding 192 MOTION to Vacate <i>and Reschedule Final Pretrial Conference</i> filed by Susan Prieto, Bridgette Watson. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 1/25/2019. Text Only Entry (cmasec) (Entered: 01/25/2019)
01/25/2019	194	OBJECTION/Appeal of Magistrate Judge Decision to District Court re 179 Order on Motion for TRO,,, Order on Motion for Sanctions,,, Order on Motion to Amend/Correct/Modify,,, Motion Hearing,,, by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A-1 - Declaration of Bridgette Watson, # 2 Exhibit A-2 - 01-08-19 Transcript of Proceedings)(Kennedy, Edmund) (Entered: 01/25/2019)
01/25/2019	195	ORDER granting 192 Defendants' Motion to Vacate and Reschedule Final Pretrial Conference. The Final Pretrial Conference set for 2/1/2019 10:30 AM is VACATED and CONVERTED to a Status Conference set for 2/1/2019 10:30 AM in Courtroom A 402

		before Magistrate Judge Scott T. Varholak. The parties may participate in the conference telephonically by calling the Court at 303.335.2365 at the scheduled time. The Clerk of Court is directed to mail a copy of this order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 1/25/2019. Text Only Entry (stvlc1,) (Entered: 01/25/2019)
01/25/2019	196	CERTIFICATE of Service by Mail by Clerk of Court re 195 Order, to Waldo Mackey, #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (jgonz,) (Entered: 01/25/2019)
01/28/2019	203	MEMORANDUM regarding 201 MOTION to Appoint Counsel filed by Waldo Mackey, 197 MOTION for Writ of Habeas Corpus ad testificandum filed by Waldo Mackey, 198 MOTION for Writ of Habeas Corpus ad testificandum filed by Waldo Mackey, 199 MOTION for Writ of Habeas Corpus ad testificandum filed by Waldo Mackey, 200 MOTION for Writ of Habeas Corpus ad testificandum filed by Waldo Mackey, 202 MOTION for Order to filed by Waldo Mackey. Motions referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 1/28/2019. Text Only Entry (cmasec) (Entered: 01/28/2019)
01/29/2019	204	ORDER denying without prejudice 197 Motion for Writ of Habeas Corpus ad Testificandum; denying without prejudice 198 Motion for Writ of Habeas Corpus ad Testificandum; denying without prejudice 199 Motion for Writ of Habeas Corpus ad Testificandum; denying without prejudice 200 Motion for Writ of Habeas Corpus ad Testificandum; denying as moot 201 Motion for Appointment of Advisory Counsel ; denying without prejudice 202 Motion for Motion for Subpoenas, by Magistrate Judge Scott T. Varholak on 1/29/2019. (jgonz,) (Entered: 01/29/2019)
01/29/2019	205	Proposed Pretrial Conference Order by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit) (athom,) (Entered: 01/29/2019)
01/30/2019	206	NOTICE of Intent re 186 Response to Motion, 187 Mitigation of Damages by Plaintiff Waldo Mackey (Attachments: # 1 Envelope) (athom,) (Entered: 01/30/2019)
02/01/2019	207	MINUTE ENTRY for Status Conference held before Magistrate Judge Scott T. Varholak on 2/1/2019. ORDERED: Proposed Final Pretrial Order due by 3/22/2019. Final Pretrial Conference set for 4/5/2019 11:00 AM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. FTR: STV-402. (morti,) (Entered: 02/01/2019)
02/01/2019	208	REPLY to Response to 172 MOTION for Summary Judgment filed by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 02/01/2019)
02/07/2019	209	RESPONSE to 194 Objection/Appeal of Magistrate Judge Decision filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/07/2019)
02/08/2019	210	SURREPLY re 172 MOTION for Summary Judgment filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/08/2019)
02/21/2019	211	MOTION to the Court and to Alert Defendants to an Affirmative Defense of Entrapment as a Matter of Law by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 02/22/2019)
02/26/2019	212	MEMORANDUM regarding 211 MOTION for Order to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 2/26/2019. Text Only Entry (cmasec) (Entered: 02/26/2019)
02/26/2019	213	ORDER denying 211 Motion for Order. This matter is before the Court on Plaintiff's 211 Motion for Order. In the Motion, Plaintiff requests the Court to require Defendants to stipulate to the fact that Plaintiff was induced to sew his clothing as a matter of law. " [T]he Court cannot ordinarily force the parties to stipulate to facts." <i>Leon v. FedEx Ground Package Sys., Inc.</i> , 218 F. Supp. 3d 1267, 1282 (D.N.M. 2016) (citing <i>Old Chief</i>

		<i>v. United States</i> , 519 U.S. 17,2 189 (1997)). The Court also notes that Plaintiff seems to be attempting to litigate the legitimacy of prison regulations on clothing alterations, and whether he had an entrapment defense to the confiscation of his clothing. The relevance of these issues to Plaintiff's instant civil rights case is not immediately clear. <i>See Vega v. People</i> , 893 P.2d 107, 111 (Colo. 1995) (holding that under the Colorado Criminal Code, "entrapment only may be asserted as an affirmative defense to the commission of acts which would otherwise constitute an offense," i.e., a crime (quotation and alterations omitted)); <i>see also Garretts Worldwide Enterprises, LLC v. United States</i> , No. 14-2281-JTM, 2015 WL 11825762, at *6 (D. Kan. Mar. 6, 2015) ("Under Kansas law, entrapment is a <i>defense</i> to a criminal prosecution, not a separate private civil action."). For these reasons, Plaintiff's Motion for Order 211 is DENIED. The Clerk of Court is instructed to mail a copy of this Order to Plaintiff. SO ORDERED, by Magistrate Judge Scott T. Varholak on 2/26/2019. Text Only Entry (stvlc2,) (Entered: 02/26/2019)
02/26/2019	214	CERTIFICATE of Service by Mail by Clerk of Court re 213 Order on Motion for Order, to Waldo Mackey #82262, Fremont Correctional Facility (FCF), P.O. Box 999, Canon City, CO 81215-0999. Text Only Entry (tshe,) (Entered: 02/26/2019)
02/27/2019	215	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 172 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson by Magistrate Judge Scott T. Varholak on 2/27/2019. (tshe,) (Entered: 02/27/2019)
03/13/2019	216	MOTION for Extension of Time to <i>File Objection to Recommendation of United States Magistrate Judge</i> by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 03/13/2019)
03/14/2019	217	ORDER granting 216 Motion for Extension of Time. Defendants shall have up to and including 3/15/2019 within which to file their Objection to the 215 Recommendation of the United States Magistrate Judge. SO ORDERED by Judge Christine M. Arguello on 3/14/2019. Text Only Entry (cmasec) (Entered: 03/14/2019)
03/15/2019	218	OBJECTION to 215 Report and Recommendations filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A-1 - COPD Hearing)(Kennedy, Edmund) (Entered: 03/15/2019)
03/21/2019	219	RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 147 MOTION for Temporary Restraining Order filed by Waldo Mackey by Magistrate Judge Scott T. Varholak on 3/21/2019. (tshe,) (Entered: 03/22/2019)
03/22/2019	220	Proposed Pretrial Order by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 03/22/2019)
03/29/2019	221	RESPONSE to Objection to 215 RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 172 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) Copy of main document (1) returned back to plaintiff. (athom,) (Entered: 04/01/2019)
04/01/2019	222	MOTION for Extension of Time to File Reply as to 215 RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE re 172 MOTION for Summary Judgment filed by Susan Prieto, Bridgette Watson by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/02/2019)
04/02/2019	223	ORDER denying as moot 222 Plaintiff's Motion for Extension of Time. The Court notes that Plaintiff's 221 Response to 218 Defendants' Objection to 215 Recommendation of United States Magistrate Judge was timely filed on 3/29/2019. SO ORDERED by Judge Christine M. Arguello on 4/2/2019. Text Only Entry (cmasec,) (Entered: 04/02/2019)

04/05/2019	224	MINUTE ENTRY for Final Pretrial Conference held before Magistrate Judge Scott T. Varholak on 4/5/2019. ORDERED: The proposed Final Pretrial Order which was submitted to the court is approved with interlineations and made an order of court. The Court will mail to Mr. Mackey, along with a copy of todays minutes,a copy of Judge Arguellos practice standards. The parties are advised to review Judge Arguellos practice standards for the method in contacting her chambers to obtain trial dates. FTR: 402. (morti,) (Entered: 04/05/2019)
04/05/2019	225	FINAL PRETRIAL ORDER by Magistrate Judge Scott T. Varholak on 4/5/19. (morti,) (Entered: 04/05/2019)
04/09/2019	226	ORDER: Pursuant to correspondence between counsel and Chambers staff, a four-day Jury Trial is set to begin 9/16/2019, at 8:30 AM, with Jury Selection set for the morning of trial in Courtroom A602, before Judge Christine M. Arguello. Final Trial Preparation Conference set for 9/4/2019, at 3:00 PM, in Courtroom A602 before Judge Christine M. Arguello. Parties are expected to be fully prepared for trial at that time. Lead counsel who will try the case shall attend in person, unless a written motion for alternative appearance is granted by the Court. These proceedings are subject to the Federal Rules of Civil Procedure, the Federal Rules of Evidence, the Local Rules of Practice for the United States District Court for the District of Colorado and the Civil Practice Standards for this courtroom, a copy of which can be downloaded from the Courts website at www.cod.uscourts.gov under the Judicial Officers tab. SO ORDERED by Judge Christine M. Arguello on 4/9/2019. Text Only Entry (cmasec) (Entered: 04/09/2019)
04/11/2019	227	ORDER Affirming the 219 March 21, 2019 Recommendation of United States Magistrate Judge and Denying Plaintiff's 147 Motion for a Temporary Restraining Order. By Judge Christine M. Arguello on 04/11/2019. (athom,) (Entered: 04/11/2019)
04/15/2019	228	MOTION for Status Request re 204 Order, by Plaintiff Waldo Mackey. (athom,) (Entered: 04/16/2019)
04/15/2019	229	MOTION for Court Order Concerning Plaintiff's Exhibits by Plaintiff Waldo Mackey. (athom,) (Entered: 04/16/2019)
04/15/2019	230	MOTION in Limine by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/16/2019)
04/16/2019	231	MEMORANDUM regarding 228 MOTION to Clarify re 204 Order on Motion for Writ of Habeas Corpus ad Testificandum, Order Appointing Counsel,, Order on Motion for Order,, filed by Waldo Mackey, 229 MOTION for Order to filed by Waldo Mackey. Motions referred to Magistrate Judge Scott T. Varholak by Judge Christine M. Arguello on 4/16/2019. Text Only Entry (cmasec) (Entered: 04/16/2019)
04/17/2019	232	MOTION to Ensure Witnesses Appearance at trial Pursuant to CMA Civ. Practice Standard 43.1C Witness List, (3)(C) by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 04/18/2019)
04/22/2019	233	LETTER re Subpoena by Plaintiff Waldo Mackey. (athom,) (Entered: 04/23/2019)
04/22/2019	234	NOTICE to Defense Counsel by Plaintiff Waldo Mackey (Attachments: # 1 Envelope) (athom,) (Entered: 04/23/2019)
04/23/2019	235	Notice of Pro Bono Appointment. Attorney V. William Scarpato III of the law firm of Wheeler Trigg ODonnell LLP has been selected as counsel to represent the Plaintiff, in accordance with the Court's Order of November 28, 2017 and D.C.COLO.LAttyR 15(f) of the U.S. District Court's Local Rules of Practice. Counsel has thirty days to either enter an appearance in the case or to file a Notice Declining Appointment. This Notice of

		Appointment will be sent to the pro se litigant and selected counsel by the undersigned designated clerk. (ebutl) (Entered: 04/23/2019)
04/24/2019	236	MOTION for Witnesses Production in court for Trial by Plaintiff Waldo Mackey. (evana,) (Entered: 04/24/2019)
04/24/2019	237	MOTION for Permission to serve subpoenas by Plaintiff Waldo Mackey. (evana,) (Entered: 04/24/2019)
04/24/2019	238	MOTION for Writ of Habeas Corpus ad testificandum as to Angel Medina by Plaintiff Waldo Mackey. (Attachments: # 1 Jason Lengerich, # 2 Matthew Hansen, # 3 Scott Dauffenbach)(evana,) (Entered: 04/24/2019)
05/03/2019	239	MOTION for Extension of Time to <i>Serve Copies of Exhibits on Plaintiff</i> by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 05/03/2019)
05/06/2019	240	MEMORANDUM regarding 232 MOTION for Order to filed by Waldo Mackey; 237 MOTION for Order to filed by Waldo Mackey; 238 MOTION for Writ of Habeas Corpus ad testificandum filed by Waldo Mackey; 230 MOTION in Limine filed by Waldo Mackey; 236 MOTION for Order to filed by Waldo Mackey; 228 MOTION to Clarify re 204 Order on Motion for Writ of Habeas Corpus ad Testificandum, Order Appointing Counsel, Order on Motion for Order, filed by Waldo Mackey; 239 MOTION for Extension of Time to <i>Serve Copies of Exhibits on Plaintiff</i> filed by Susan Prieto, Bridgette Watson; 229 MOTION for Order to filed by Waldo Mackey. Motions referred to Magistrate Judge Scott T. Varholak. SO ORDERED by Judge Christine M. Arguello on 5/6/19. Text Only Entry (cmalc1) (Entered: 05/06/2019)
05/06/2019	241	RESPONSE to 229 MOTION for Order to <i>Concerning Plaintiff's Exhibits</i> filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 05/06/2019)
05/06/2019	242	RESPONSE to 230 MOTION in Limine filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 05/06/2019)
05/08/2019	243	RESPONSE to 232 MOTION for Order to <i>Ensure Witnesses Appearance at Trial</i> filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 05/08/2019)
05/13/2019	244	MOTION for Status Report and Excusable Neglect to File Plaintiff's Exhibit With Defendants by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) Copy of main document (1) returned back to plaintiff. (athom,) Modified on 5/14/2019 to add text (athom,). (Entered: 05/14/2019)
05/14/2019	245	MEMORANDUM regarding 244 MOTION for Order to filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak. SO ORDERED by Judge Christine M. Arguello on 5/14/19. Text Only Entry (cmalc1) (Entered: 05/14/2019)
05/15/2019	246	RESPONSE to 237 MOTION for Order to, 238 MOTION for Writ of Habeas Corpus ad testificandum, 236 MOTION for Order to filed by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 05/15/2019)
05/15/2019	250	REPLY to Response to 230 MOTION in Limine filed by Plaintiff Waldo Mackey. (Attachments: # 1 Envelope) (athom,) (Entered: 05/17/2019)
05/16/2019	247	NOTICE of Entry of Appearance by Kevin D Homiak on behalf of Waldo MackeyAttorney Kevin D Homiak added to party Waldo Mackey(pty:pla) (Homiak, Kevin) (Entered: 05/16/2019)
05/16/2019	248	NOTICE of Entry of Appearance by Victor William Scarpato, III on behalf of Waldo MackeyAttorney Victor William Scarpato, III added to party Waldo Mackey(pty:pla) (Scarpato, Victor) (Entered: 05/16/2019)

05/16/2019	249	ORDER. In light of 247 Notice of Entry of Appearance and 248 Notice of Entry of Appearance on behalf of Plaintiff, the following Motions are DENIED WITHOUT PREJUDICE, with leave to refile through counsel: 228 Motion to Clarify; 229 Motion for Order; 230 Motion in Limine; 232 Motion for Order; 236 Motion for Order; 237 Motion for Order; 238 Motion for Writ of Habeas Corpus ad Testificandum; 239 Motion for Extension of Time to File ; and 244 Motion for Order. SO ORDERED, by Magistrate Judge Scott T. Varholak on 5/16/2019. Text Only Entry(stvlc2,) (Entered: 05/16/2019)
05/17/2019	251	Joint MOTION for Extension of Time to <i>of Deadlines</i> by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only) [Proposed] Order Granting Joint Motion for Extension of Deadlines)(Homiak, Kevin) (Entered: 05/17/2019)
05/18/2019	252	MEMORANDUM regarding 251 Joint MOTION for Extension of Deadlines filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak. SO ORDERED by Judge Christine M. Arguello on 5/18/19. Text Only Entry (cmalc1) (Entered: 05/18/2019)
05/20/2019	253	ORDER granting 251 Motion for Extension of Time to File. The deadline to file and serve any motions in limine is EXTENDED until 8/14/2019, with responses due 14 days after the filing of any such motion. The deadline to exchange deposition designations is EXTENDED until 8/14/2019, with counter-designations due on 8/21/2019, and objections to such designations due on 8/28/2019. The deadline to exchange Witness and Exhibit Lists is EXTENDED until 8/14/2019. The deadline to exchange objections to Witness and Exhibit Lists is EXTENDED until 8/21/2019 and the deadline to email chambers Joint Witness and Exhibit Lists is EXTENDED until 8/28/2019. SO ORDERED, by Magistrate Judge Scott T. Varholak on 5/20/2019. Text Only Entry(stvlc2,) (Entered: 05/20/2019)
05/21/2019	254	MOTION for Extension of Time to (<i>Opposed Motion for Extension of Discovery Deadline</i>) by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only) Granting Extension of Discovery Deadline)(Homiak, Kevin) (Entered: 05/21/2019)
05/22/2019	255	MEMORANDUM regarding 254 MOTION for Extension of Time to (<i>Opposed Motion for Extension of Discovery Deadline</i>) filed by Waldo Mackey. Motion referred to Magistrate Judge Scott T. Varholak. SO ORDERED by Judge Christine M. Arguello on 5/22/19. Text Only Entry (cmalc1) (Entered: 05/22/2019)
05/22/2019	256	MINUTE ORDER re: 254 MOTION for Extension of Discovery Deadline. Defendants shall file a response on or before 5/29/2019. Motion Hearing set for 5/30/2019 02:30 PM in Courtroom A 402 before Magistrate Judge Scott T. Varholak. SO ORDERED, by Magistrate Judge Scott T. Varholak on 5/22/2019. Text Only Entry (stvlc2,) (Entered: 05/22/2019)
05/22/2019	257	REPLY to Response to 237 MOTION for Order to, 238 MOTION for Writ of Habeas Corpus ad testificandum, 236 MOTION for Order to filed by Plaintiff Waldo Mackey. (athom,) (Entered: 05/22/2019)
05/29/2019	258	RESPONSE to 254 MOTION for Extension of Time to (<i>Opposed Motion for Extension of Discovery Deadline</i>) filed by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 05/29/2019)
05/30/2019	259	MINUTE ENTRY for Motion Hearing held before Magistrate Judge Scott T. Varholak on 5/30/2019. 254 Plaintiffs Opposed Motion for Extension of Discovery Deadline[Doc.No. 254] is GRANTED. Discovery is reopened until June 28,2019 for the limited purpose of conducting the followingdepositions: (1) Each Defendant may be deposed for four (4) hourseach or for a total of eight (8) hours; (2) Plaintiff may conduct fouradditional depositions each limited to two (2) hours each. FTR: 402. (morti,) (Entered: 05/30/2019)

08/05/2019	260	ORDER Defendants Objection (Doc. # 194) to the Magistrate Judges denial of their Motion to Amend Answer is SUSTAINED; The Magistrate Judge's oral order (Doc. # 179) denying Defendants' Motion to Amend Answer is VACATED; Defendants Motion to Amend Answer (Doc. # 161) is GRANTED; Defendants' proposed Amended Answer (Doc. # 161-1) is ACCEPTED FOR FILING. The Clerk of the Court shall docket Defendants proposed Amended Answer (Doc. # 161-1) in its own entry, by Judge Christine M. Arguello on 8/5/2019.(evana,) (Entered: 08/05/2019)
08/05/2019	261	AMENDED ANSWER to 1 Prisoner Complaint, with Jury Demand by Defendants Susan Prieto, Bridgette Watson. (evana,) (Entered: 08/05/2019)
08/14/2019	262	Unopposed MOTION for Writ of Habeas Corpus ad testificandum by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit A - Deposition of Bridgette Watson, # 2 Exhibit B - Deposition of Christopher Wood, # 3 Proposed Document Writ of Habeas Corpus Ad Testificandum)(Scarpato, Victor) (Entered: 08/14/2019)
08/14/2019	263	MOTION in Limine to <i>Exclude Evidence of His Prior Convictions and Parole Proceedings</i> by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibit A - Deposition of Christopher Wood, # 2 Exhibit B - Deposition of Bridgette Watson, # 3 Proposed Order (PDF Only) Granting Plaintiff Waldo Mackey's Motion in Limine to Exclude Evidence of His Prior Convictions and Parole Proceedings)(Scarpato, Victor) (Entered: 08/14/2019)
08/15/2019	264	ORDER re 263 Plaintiff's Motion in Limine: Defendants shall have up to and including 8/29/19 to respond to 263 Plaintiff's Motion in Limine. SO ORDERED by Judge Christine M. Arguello on 8/15/19. Text Only Entry (cmalc1) (Entered: 08/15/2019)
08/20/2019	265	ORDER Granting in part and Denying in part 262 Plaintiff's Unopposed Motion for Writ of Habeas Corpus ad Testificandum, by Judge Christine M. Arguello on 8/20/2019. (evana,) (Entered: 08/20/2019)
08/20/2019	266	RESTRICTED DOCUMENT - Level 1: Writ of Habeas Corpus Ad Testificandum. (evana,) (Entered: 08/21/2019)
08/22/2019	267	ORDER that Magistrate Judge Varholak's February 27, 2019 Recommendation (Doc. # 215) is AFFIRMED and ADOPTED as an Order of this Court. That Defendants' Objection (Doc. # 218) is OVERRULED. that Defendants' Motion for Summary Judgment (Doc. # 172) is DENIED, by Judge Christine M. Arguello on 8/22/2019. (evana,) (Entered: 08/22/2019)
08/28/2019	268	BRIEF with Objections to Defendants' Competing and Non-Stipulated Jury Instructions and Verdict Form by Plaintiff Waldo Mackey. (Homiak, Kevin) (Entered: 08/28/2019)
08/28/2019	269	DOCKETING ERROR OBJECTIONS to to Plaintiff's Deposition Designations by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Modified on 8/28/2019 This was a Docketing Error and will be refiled with a correct PDF) (evana,). (Entered: 08/28/2019)
08/28/2019	270	OBJECTIONS to Plaintiff's Deposition Designations by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 08/28/2019)
08/28/2019	271	OBJECTIONS to Plaintiff's Response to Plaintiff's Proposed Competing and Non-Stipulated Jury Instructions and Verdict Forms by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 08/28/2019)
08/28/2019	272	RESPONSE to 263 MOTION in Limine to <i>Exclude Evidence of His Prior Convictions and Parole Proceedings</i> filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 08/28/2019)

09/04/2019	273	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Trial Preparation Conference held on 9/4/2019. ORDERED: GRANTING IN PART AND DENYING IN PART 263 Plaintiff's Motion in Limine, as stated on the record. TRIAL: The Court affirms the Four-Day (4) jury trial scheduled to begin 9/16/2019 at 8:30 a.m. Parties allowed 15 minutes per side for voir dire. Case shall be tried to a jury of ten (10). Jurors will be allowed to take notes. Parties agree to the sequestration of witnesses with the exception of the expert witnesses. Parties waive the reporting of Jury Instructions. DEADLINES: Glossary due 9/13/2019 by 12:00 p.m. (Total time: 30 Minutes, Hearing time: 2:57 p.m. -- 3:27 p.m.) APPEARANCES: Victor William Scarpato, III and Kevin Homiak on behalf of the Plaintiff; Andrew Ringel and Edmund Kennedy on behalf of the Defendant. Court Reporter: Julie Thomas. (swest) Text Only Entry Modified on 9/4/2019 to correct html code(bwilk,). (Entered: 09/04/2019)
09/16/2019	274	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day-One held on 9/16/2019. Opening statements. WITNESSES SWORN AND TESTIFIED: Waldo Mackey. EXHIBITS RECEIVED: 28, 7, 4, 6, 5, 26, 1, 13, 19. Jury excused for the day. Trial continued to 9/17/2019. (Total time: 4 Hours, 53 Minutes, Hearing time: 8:46 a.m. -- 3:01 p.m.) APPEARANCES: Victor William Scarpato, III and Kevin Homiak on behalf of the Plaintiff; Andrew Ringel and Edmund Kennedy on behalf of the Defendants. ALSO PRESENT: Plaintiff Waldo Mackey; Defendants Bridgette Watson and Susan Prieto. Court Reporter: Julie Thomas. (swest) Text Only Entry (Entered: 09/16/2019)
09/17/2019	275	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day-Two held on 9/17/2019. WITNESSES SWORN AND TESTIFIED: Waldo Mackey (continued); Christopher Wood (video deposition); Bridgette Watson; Susan Prieto; Rodolfo Rivera; Jeff Hawkins. EXHIBITS RECEIVED: 14, 8-10, 18, 16, 34 (For Record Only), 17, 25, 22, 35 (Identification Only). ORDERED: DENYING Defendants' Oral Motion for Judgment as a Matter of Law Pursuant to Rule 50(a). Charging Conference. Jury excused for the day. Trial continued to 9/18/2019. (Total time: 4 Hours, 57 Minutes, Hearing time: 8:00 a.m. -- 2:15 p.m.) APPEARANCES: Victor William Scarpato, III and Kevin Homiak on behalf of the Plaintiff; Andrew Ringel and Edmund Kennedy on behalf of the Defendants. ALSO PRESENT: Plaintiff Waldo Mackey; Defendants Bridgette Watson and Susan Prieto. Court Reporter: Julie Thomas. (swest) Text Only Entry (Entered: 09/17/2019)
09/18/2019	276	MINUTE ENTRY for proceedings held before Judge Christine M. Arguello: Jury Trial Day-Three completed on 9/18/2019. WITNESSES SWORN AND TESTIFIED: Linda Witte; Brian Kirk. Jury instructed. Closing arguments. Deliberations began at 10:14 a.m. JURY VERDICT. Jury excused with the thanks of the Court. Trial concluded. ORDERED: lunch will be provided to the jury during their deliberations. FURTHER ORDERED: counsel for the parties shall retain custody of their respective exhibits and depositions until such time as all need for the exhibits and depositions has terminated and the time to appeal has expired or all appellate proceedings have been terminated plus sixty days. (Total time: 2 Hours, 16 Minutes, Hearing time: 8:00 a.m. -- 3:27 p.m.) APPEARANCES: Victor William Scarpato, III and Kevin Homiak on behalf of the Plaintiff; Andrew Ringel and Edmund Kennedy on behalf of the Defendants. ALSO PRESENT: Plaintiff Waldo Mackey; Defendants Bridgette Watson and Susan Prieto. Court Reporter: Julie Thomas. (swest) Text Only Entry (Entered: 09/19/2019)

09/18/2019	277	Final Jury Instructions. (swest) (Entered: 09/19/2019)
09/18/2019	278	Jury Note. (swest) (Entered: 09/19/2019)
09/18/2019	279	JURY VERDICT FORM. (swest) (Entered: 09/19/2019)
09/18/2019	280	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (swest) (Entered: 09/19/2019)
09/19/2019	281	FINAL JUDGMENT in favor of Plaintiff Waldo Mackey and against Defendants Bridgette Watson and Susan Prieto, by Clerk on 9/19/2019. (swest) (Entered: 09/19/2019)
10/03/2019	282	Unopposed MOTION for Extension of Time to <i>File Motion for Attorney Fees and Costs</i> by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only)(Homiak, Kevin) (Entered: 10/03/2019)
10/04/2019	283	ORDER granting 282 Plaintiff's Unopposed Motion for Extension of Deadline to File Motion for Attorney Fees and Costs. Plaintiff shall have up to and including 10/10/2019, within which to file its Motion for Attorney Fees and Costs. SO ORDERED BY Judge Christine M. Arguello on 10/4/2019. Text Only Entry (cmalc1) (Entered: 10/04/2019)
10/10/2019	284	Proposed Bill of Costs by Plaintiff Waldo Mackey. (Attachments: # 1 Exhibits A - E - Bill of Costs Supporting Documentation, # 2 Bill of Costs Spreadsheet)(Homiak, Kevin) (Entered: 10/10/2019)
10/10/2019	285	Partial MOTION for Attorney Fees <i>Plaintiff Waldo Mackeys Partially Opposed Motion For Attorney Fees</i> by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only), # 2 Exhibit A - Billing Invoice - 06-14-19, # 3 Exhibit B - Billing Invoice - 07-11-19, # 4 Exhibit C - Billing Invoice - 08-28-19, # 5 Exhibit D - Billing Invoice - 09-11-19, # 6 Exhibit E - Billing Invoice - 10-07-19, # 7 Exhibit F - Fees Spreadsheet, # 8 Exhibit G - Scarpato Affidavit)(Homiak, Kevin) (Entered: 10/10/2019)
10/17/2019	286	MOTION to Alter Judgment <i>or, in the Alternative, for New Trial on Puntive Damages</i> by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 10/17/2019)
10/17/2019	287	MOTION to Stay of Execution of Judgment <i>Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal</i> by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 10/17/2019)
10/17/2019	288	Unopposed MOTION for Leave to Restrict by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 10/17/2019)
10/17/2019	289	RESTRICTED DOCUMENT - Level 1: Declaration of Susan Prieto by Defendants Susan Prieto, Bridgette Watson.. (Attachments: # 1 Exhibit)(Kennedy, Edmund) (Modified on 10/24/2019 edited to add the title of the document filed)(evana,). (Entered: 10/17/2019)
10/22/2019	290	ORDER granting 288 Motion for Leave to Restrict. Doc. 289 , all exhibits attached thereto, and any orders that may reveal the contents of these documents shall have a Level 1 Restriction. SO ORDERED by Judge Christine M. Arguello on 10/22/2019. Text Only Entry (cmalc1) (Entered: 10/22/2019)
10/29/2019	291	Unopposed MOTION for Extension of Time to File Response/Reply as to 285 Partial MOTION for Attorney Fees <i>Plaintiff Waldo Mackeys Partially Opposed Motion For Attorney Fees</i> by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 10/29/2019)
10/30/2019	292	ORDER granting 291 Defendants' Unopposed Motion for Extension of Time to File Response to Plaintiff's Motion for Attorney Fees. Defendants Watson and Prieto shall have up to and including 11/7/2019, within which to file their Response to 285 Plaintiff

		Waldo Mackey's Partially Opposed Motion for Attorney Fees. SO ORDERED by Judge Christine M. Arguello on 10/30/2019. Text Only Entry (cmalc1) (Entered: 10/30/2019)
11/05/2019	293	Unopposed MOTION for Extension of Time to File Response/Reply as to 287 MOTION to Stay of Execution of Judgment Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal, 286 MOTION to Alter Judgment or, in the Alternative, for New Trial on Punitive Damages by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only))(Scarpato, Victor) (Entered: 11/05/2019)
11/05/2019	294	Unopposed MOTION for Leave to File Excess Pages <i>for Response to Plaintiff's Motion for Attorney Fees</i> by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 11/05/2019)
11/07/2019	295	RESPONSE to 285 Partial MOTION for Attorney Fees <i>Plaintiff Waldo Mackeys Partially Opposed Motion For Attorney Fees</i> filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: # 1 Exhibit A-1 - Pla's Dep Designations)(Ringel, Andrew) (Entered: 11/07/2019)
11/07/2019	296	ORDER granting 293 Unopposed Motion for Extension of Deadline to Respond to Motions for Remittitur and to Stay Judgment. Plaintiff shall have up to and including 11/14/2019, within which to file his Responses to 286 Defendants Motion for Remittitur or, in the Alternative, for New Trial on Punitive Damages and 287 Defendants' Motion for Extension of Stay of Execution of Judgment Pending Resolution of their Motion for Remittitur and Any Appeal. SO ORDERED by Judge Christine M. Arguello on 11/7/2019. Text Only Entry (cmalc1) (Entered: 11/07/2019)
11/07/2019	297	ORDER granting 294 Defendants' Unopposed Motion to Exceed Page Limit for Response to Plaintiff's Motion for Attorney Fees. Defendants are permitted to file their Response to Plaintiff's Motion for Attorney Fees in excess of this Court's page limitations, NOT TO EXCEED 19 pages in total, excluding Certificate of Service. SO ORDERED by Judge Christine M. Arguello on 11/7/2019. Text Only Entry (cmalc1) (Entered: 11/07/2019)
11/14/2019	298	RESPONSE to 286 MOTION to Alter Judgment <i>or, in the Alternative, for New Trial on Punitive Damages</i> filed by Plaintiff Waldo Mackey. (Scarpato, Victor) (Entered: 11/14/2019)
11/14/2019	299	RESPONSE to 287 MOTION to Stay <i>of Execution of Judgment Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal</i> filed by Plaintiff Waldo Mackey. (Scarpato, Victor) (Entered: 11/14/2019)
11/15/2019	300	WITHDRAWN. MOTION to grant further relief and or Modify 281 Judgment, by Plaintiff Waldo Mackey. (evana,) Modified on 1/24/2020 to withdraw the motion per 301 Notice. (sphil,). (Entered: 11/18/2019)
11/20/2019	301	NOTICE re 300 MOTION to Amend/Correct/Modify 281 Judgment <i>Notice of Withdrawal of Motion for Further Relief and or Modification of Judgment</i> by Plaintiff Waldo Mackey (Scarpato, Victor) (Entered: 11/20/2019)
11/20/2019	302	Unopposed MOTION for Extension of Time to File Response/Reply as to 285 Partial MOTION for Attorney Fees Plaintiff Waldo Mackeys Partially Opposed Motion For Attorney Fees Plaintiff Waldo Mackeys Unopposed Motion for Extension of Deadline to File Reply in Support of Plaintiffs Partially Opposed Motion for Attorney Fees by Plaintiff Waldo Mackey. (Attachments: # 1 Proposed Order (PDF Only))(Homiak, Kevin) (Entered: 11/20/2019)
11/22/2019	303	ORDER GRANTING Plaintiff's 302 Unopposed Motion for Extension of Deadline to File Reply. Plaintiff Mackey will have up to and including 11/25/2019, within which to

		file his Reply in Support of his Partially Opposed Motion for Attorneys Fees. SO ORDERED by Judge Christine M. Arguello on 11/22/2019. Text Only Entry (cmalc1) (Entered: 11/22/2019)
11/25/2019	304	Unopposed MOTION for Extension of Time to File Response/Reply as to 287 MOTION to Stay of Execution of Judgment Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal, 286 MOTION to Alter Judgment or, in the Alternative, for New Trial on Puntive Damages by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 11/25/2019)
11/25/2019	305	ORDER GRANTING 304 Defendants' Unopposed Motion for Extension of Time. Defendants Watson and Prieto will have up to and including 12/6/2019, within which to file reply briefs in support of their 286 Motion for Remittitur and 287 Motion to Stay Execution of Judgment. SO ORDERED by Judge Christine M. Arguello on 11/25/2019. Text Only Entry (cmalc1) (Entered: 11/25/2019)
11/25/2019	306	REPLY to Response to 285 Partial MOTION for Attorney Fees <i>Plaintiff Waldo Mackeys Partially Opposed Motion For Attorney Fees</i> filed by Plaintiff Waldo Mackey. (Attachments: # 1 Declaration of Kevin D. Homiak in Support of Plaintiff Waldo Mackey's Partially Opposed Motion for Attorney Fees)(Homiak, Kevin) (Entered: 11/25/2019)
12/06/2019	307	REPLY to Response to 286 MOTION to Alter Judgment <i>or, in the Alternative, for New Trial on Puntive Damages</i> filed by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 12/06/2019)
12/06/2019	308	Unopposed MOTION for Extension of Time to File Response/Reply as to 287 MOTION to Stay of Execution of Judgment Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 12/06/2019)
12/06/2019	309	ORDER granting 308 Second Unopposed Motion for Extension of Time to File Reply Brief in Support of Motion to Stay Execution of Judgment. Defendants Watson and Prieto will have up to and including Wednesday, 12/11/2019, within which to file their Reply to 287 Motion to Stay Execution of Judgment. SO ORDERED by Judge Christine M. Arguello on 12/6/2019. Text Only Entry (cmalc1) (Entered: 12/06/2019)
12/11/2019	310	REPLY to Response to 287 MOTION to Stay of Execution of Judgment Pending Resolution of Execution of Judgment Pending Resolution of Their Motion for Remittitur and Any Appeal filed by Defendants Susan Prieto, Bridgette Watson. (Attachments: RESTRICTED DOCUMENT Level-1 # 1 Exhibit C - Supplemental Declaration of Susan Prieto, RESTRICTED DOCUMENT Level-1# 2 Exhibit D - Supplemental Declaration of Bridgette Watson, # 3 Exhibit E - CDOC AR 200-15)(Kennedy, Edmund) (Modified on 12/12/2019 Restricted Exhibit #1 and #2, pursuant to the 311 Motion for leave to Restrict) (evana,). (Entered: 12/11/2019)
12/11/2019	311	Unopposed MOTION for Leave to Restrict by Defendants Susan Prieto, Bridgette Watson. (Kennedy, Edmund) (Entered: 12/11/2019)
12/11/2019	312	RESTRICTED DOCUMENT - Level 1: Supplemental Declaration by Defendants Susan Prieto and Bridgette Watson (Attachments: # 1 Continuation of Main Document Exhibit) (Kennedy, Edmund) (Modified on 12/12/2019 text edited to add the title of the document) (evana,). (Entered: 12/11/2019)
12/13/2019	313	ORDER granting 311 Motion for Leave to Restrict. Doc. ## 310-1 and 310-2, and any orders that may reveal the contents of these documents, shall have a Level 1 Restriction. SO ORDERED by Judge Christine M. Arguello on 12/13/2019. Text Only Entry (cmalc1) (Entered: 12/13/2019)

12/17/2019	314	Costs Taxed by Clerk in the amount of \$5,501.60 against Defendants Bridgette Watson and Susan Prieto and in favor of Plaintiff Waldo Mackey. Hearing held Dec. 10, 2019 before the Clerk. Parties directed by Clerk to confer and submit supplement re: depositions. Taxation of Costs by Clerk entered Dec. 17, 2019. (ebutl) (Entered: 12/17/2019)
01/28/2020	315	NOTICE of Change of Address/Contact Information <i>Notice of Change of Firm Affiliation and Change of Address</i> by Kevin D. Homiak (Homiak, Kevin) (Entered: 01/28/2020)
01/31/2020	316	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: 315 Notice of Change of Address/Contact Information filed by attorney Kevin D. Homiak. DO NOT REFILE THE DOCUMENT. Action to take - counsel must submit a change of contact request through the Attorney Services Portal Account pursuant to D.C.COLO.LAttyR 5(c) and 3.5 of the Electronic Case Filing Procedures (Civil cases). (Text Only Entry) (evana,) (Entered: 01/31/2020)
04/28/2020	317	NOTICE of Entry of Appearance by Kristen Leigh Ferries on behalf of Waldo MackeyAttorney Kristen Leigh Ferries added to party Waldo Mackey(pty:pla) (Ferries, Kristen) (Entered: 04/28/2020)
04/28/2020	318	MOTION to Withdraw <i>Motion for Withdrawal and Substitution of Counsel</i> by Plaintiff Waldo Mackey. (Ferries, Kristen) (Entered: 04/28/2020)
04/29/2020	319	ORDER granting 318 Plaintiff Waldo Mackey's Motion for Withdrawal and Substitution of Counsel. Attorney V. William Scarpato III is permitted to withdraw as counsel for Plaintiff. The Court notes that Plaintiff continues to be represented by Kristen L. Ferries of Wheeler Trigg O'Donnell LLP and Kevin Homiak of Homiak Law LLC. FURTHER ORDERED that the Clerk of the Court is DIRECTED to delete Attorney Scarpato's email address from future ECF filings and electronic notifications in this case. SO ORDERED by Judge Christine M. Arguello on 4/29/2020. Text Only Entry (cmalc1) (Entered: 04/29/2020)
08/14/2020	320	ORDER that Defendants' Motion for Remittitur or, in the Alternative, for New Trial on Punitive Damages (Doc. # 286) is DENIED; Defendants' Motion for Extension of Stay of Execution of Judgment Pending Resolution of their Motion for Remittitur and Any Appeal (Doc. # 287) is DENIED; and Plaintiff Waldo Mackey's Partially Opposed Motion for Attorney Fees (Doc. # 285) is GRANTED IN PART and DENIED IN PART as follows: the Motion is granted as to a fee award of \$100,820.03; 25% of Plaintiff's judgment funds (\$45,000.50) shall be contributed to satisfy the fee award; the remaining \$55,819.53 of the fee award shall be paid by Defendants, for which Defendants are jointly and severally liable; the Motion is denied to the extent it requests a greater fee award. by Judge Christine M. Arguello on 8/14/2020.(evana,) (Entered: 08/14/2020)
08/20/2020	321	STRICKEN by Doc. 321 - MOTION for Status Report, by Plaintiff Waldo Mackey. (evana,) Modified on 8/27/2020 (cmasec). (Entered: 08/20/2020)
08/27/2020	322	ORDER STRIKING 321 Motion due to being filed pro se by a party who is currently represented by counsel. SO ORDERED by Judge Christine M. Arguello on 8/27/2020. Text Only Entry(cmasec) (Entered: 08/27/2020)
09/10/2020	323	NOTICE OF APPEAL as to 273 Order on Motion in Limine,,,,, Trial Preparation Conference,,,,, Text Only Entry - Prompts,,,,, 281 Judgment, 276 Jury Trial - Completed,,,,, Text Only Entry - Prompts,,,,, 274 Jury Trial - Begun,,, Text Only Entry - Prompts,, 275 Jury Trial - Held,,,,, Text Only Entry - Prompts,,, 51 Order on Report and Recommendations,, Order on Motion to Dismiss, 277 Jury Instructions, 267 Order on Motion for Summary Judgment,, Order on Report and Recommendations, 320 Order on Motion for Attorney Fees,,,,, Order on Motion to Alter Judgment,,,,, Order on Motion to

		Stay,,, by Defendants Susan Prieto, Bridgette Watson (Filing fee \$ 505, Receipt Number 1082-7480893) (Ringel, Andrew) (Entered: 09/10/2020)
09/11/2020	324	LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the 323 Notice of Appeal, filed by Susan Prieto, Bridgette Watson to the U.S. Court of Appeals. (Retained Counsel, Fee paid,) (Attachments: # 1 Docket Sheet, # 2 Preliminary Record)(evana,) (Entered: 09/11/2020)
09/11/2020	325	USCA Case Number 20-1322 for 323 Notice of Appeal, filed by Susan Prieto, Bridgette Watson. (evana,) (Entered: 09/11/2020)
09/22/2020	326	TRANSCRIPT ORDER FORM re 323 Notice of Appeal,, by Defendants Susan Prieto, Bridgette Watson (Ringel, Andrew) (Entered: 09/22/2020)
10/15/2020	327	REPORTER TRANSCRIPT ORDER FORM filed by Julie Thomas re: 323 Notice of Appeal. Transcript due by 11/23/2020. (nrich) (Entered: 10/15/2020)
11/23/2020	328	TRANSCRIPT of FINAL TRIAL PREPARATION CONFERENCE held on 9/4/2019 before Judge Arguello. Pages: 1-25. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Thomas, Julie) (Entered: 11/23/2020)
11/23/2020	329	TRANSCRIPT of JURY TRIAL, VOLUME I, held on 9/16/2019 before Judge Arguello. Pages: 1-132. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Thomas, Julie) (Entered: 11/23/2020)
11/23/2020	330	TRANSCRIPT of JURY TRIAL, VOLUME II, held on 9/17/2019 before Judge Arguello. Pages: 133-355. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.
 Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Thomas, Julie) (Entered: 11/23/2020)
11/23/2020	331	TRANSCRIPT of JURY TRIAL, VOLUME III, held on 9/18/2019 before Judge Arguello. Pages: 356-420. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available

		after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Thomas, Julie) (Entered: 11/23/2020)
11/23/2020	332	TRANSCRIPT of JURY TRIAL, MASTER INDEX TO VOLUMES I-III, held on 9/16/2019 - 9/18/2019 before Judge Arguello. Pages: 1-3. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Thomas, Julie) (Entered: 11/23/2020)
11/25/2020	333	LETTER TO USCA and all counsel certifying the record is complete as to 323 Notice of Appeal, filed by Susan Prieto, Bridgette Watson. All transcripts ordered are now on file as of 11/23/2020. (Appeal No. 20-1322) Text Only Entry (evana,) (Entered: 11/25/2020)
06/14/2021	334	USCA Order as to 323 Notice of Appeal,, filed by Susan Prieto, Bridgette Watson : In accordance with 10th Cir. R. 33.1 and upon consideration of the stipulation of the parties to voluntarily dismiss the captioned appeal, this appeal is dismissed. See Fed. R. App. P. 42(b).Each party will bear their own costs on appeal. A copy of this order will stand as the mandate of the court. (USCA Case No. 20-1322) (This document is not the Mandate) (evana,) (Entered: 06/15/2021)
06/14/2021	335	MANDATE of USCA as to 334 USCA Order, 323 Notice of Appeal, filed by Susan Prieto, Bridgette Watson : (USCA Case No. 20-1322) (evana,) (Entered: 06/15/2021)
06/21/2021	336	STIPULATION of Dismissal of Case <i>with Prejudice and Notice of Satisfaction of Judgment</i> by Defendants Susan Prieto, Bridgette Watson. (Ringel, Andrew) (Entered: 06/21/2021)
06/22/2021	337	ORDER: Civil Case Dismissed pursuant to 336 Stipulation for Dismissal With Prejudice and Notice of Satisfaction of Judgment. SO ORDERED by Judge Christine M. Arguello on 6/22/2021. (cmasec) (Entered: 06/22/2021)

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PACER Login:	ehelland	Client Code:	
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Billable Pages:	28	Cost:	2.80
Exempt flag:	Exempt	Exempt reason:	Exempt Court Order